

26CV00306 John Bacon, Peter Van Bregmann vs Princess Cruise Lines LTD

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-06

Motion: Princess's Motion to Dismiss and Case Management Conference

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/26cv00306>

Source SHA-256: 80139e6aa98e615863d084b9bdc41d48466d7094e572ac93573411a1382213dd

Tentative Ruling: John Bacon, Peter Van Bregmann vs Princess Cruise Lines LTD

Case Number

26CV00306

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 05/06/2026 - 10:00

Nature of Proceedings

Princess's Motion to Dismiss and Case Management Conference

Tentative Ruling

Plaintiffs ["Bacon," "Bregmann" or "Plaintiffs"] are self-represented

Defendant ["Princess"] is represented by André M. Picciurro, Kelsey B. Milack

Issue

Princess's Motion to Dismiss and Case Management Conference.

RULINGS

For the reasons set out below:

Plaintiffs' action against Defendant in California state Court is barred, and Plaintiffs must pursue their claims, if at all, in arbitration located in Miami-Dade County, Florida based on the agreed-upon and enforceable forum-selection clause in the Passage Contract.

Defendant's motion to dismiss for improper forum is GRANTED based on the valid and enforceable forum-selection clause in the Passage Contract governing the cruise purchase at issue in this litigation, which requires non-personal injury cases to be arbitrated in Miami-Dade County, Florida to the exclusion of any other forum.

This case is dismissed with prejudice in California.

There is a [Proposed] Order submitted by the Defendant that the Court will sign.

Plaintiffs Evidentiary Objections. Filed by Plaintiffs on 3/20/26: Objection No. 1 (Lack of Foundation). OVERULED Objection No. 2 (Legal Conclusion; assumes contract formation). OVERULED Objection No. 3 (Best Evidence; no clickwrap/checkbox acceptance records produced). OVERULED Objection No. 4 (Personal Knowledge). OVERULED

The Case Management Conference is off calendar

Analysis

Plaintiffs' Complaint

Filed 1/16/26; 54 pages; summarized: Plaintiffs contend this action arises from Princess Cruise Lines, Ltd.'s deliberate and bad-faith cancellation of a fully paid, confirmed passenger booking after accepting Plaintiffs' money, issuing boarding credentials, and inducing Plaintiffs to purchase non-refundable accommodations, including airfare and plan a time-specific birthday and celebration voyage. Princess accepted payment on January 2, 2026, issued booking confirmations and Medallion boarding purchase confirmation for both passengers on January 5, 2026, and only afterward on January 6, 2026, retroactively declared Plaintiff John Bacon "Do Not Sail," cancelled the Medallions purchased, and removed him from the booking without notice, explanation, or process. Princess now claims that John Bacon was banned on December 7, 2021, four years earlier despite continuing for years to accept his money, sell him future cruise credits, Platinum sell and confirm this acknowledge loyalty status, Medallions, very booking. Unless immediately enjoined Princess will permanently destroy Plaintiffs' once-in-a-lifetime birthday and celebration voyage, strand Plaintiffs' non-refundable Frontier Airlines miles, and irreversibly deprive Plaintiffs of their contracted travel.

First Cause of Action Breach of Contract. Princess confirmed Plaintiffs' booking, accepted payment, issued boarding credentials, and then removed John Bacon without contractual basis.

Second Cause of Action Promissory Estoppel. Princess induced Plaintiffs to purchase non-refundable accommodations including flight and plan a birthday voyage in reliance on its confirmations.

Third Cause of Action Unlawful Denial of Public Accommodation. Princess is a common carrier and may not arbitrarily or secretly exclude confirmed, paid passengers without notice or legitimate basis.

Prayer: Plaintiffs request

1. That this Court immediately restrain Defendant from enforcing any "Do-Not-Sail," cancellation, or exclusion against either Plaintiff in connection with Booking DRCQST and the February 15-22, 2026, Regal Princess sailing; and set an
2. Order to show Cause for Defendant to appear and show cause why a preliminary injunction should not issue continuing these restraints; and issue a
3. Temporary Restraining Order ["TRO"] that Defendant Princess Cruise Lines, Ltd., its agents, employees, and contractors are temporarily restrained from cancelling, blocking, denying boarding to, or otherwise excluding John Bacon or Peter Van Bregmann from Booking DRCQ5T and the February 15-22, 2026, Regal Princess sailing, and from enforcing any "Do-Not-Sail" designation against either Plaintiff in connection with that voyage.

Ex Parte Hearing

Held on Thurs 1/22/26 @ 8:15; summarized: Ex Parte Application for OSC for Preliminary Injunction and TRO; Bacon and Bregmann setting parties; Plaintiffs applied ex parte for a Temporary Restraining Order and Order to Show Cause re Preliminary Injunction to prevent Defendant Princess Cruise Lines, Ltd. from cancelling, blocking, or denying boarding to Plaintiffs for Booking DRCQ5T on the February 15-22, 2026, Regal Princess sailing. The motion was DENIED.

Motion to Dismiss

Filed by Princess on 2/20/26 and set for hearing on 5/6/26; Princess moves this Court for an order dismissing the instant action pursuant to the terms of the Passage Contract which requires that Plaintiffs' personal injury claims be arbitrated, if at all, in Miami-Dade County, Florida.

Supported by the following:

1. Memorandum in Support of Motion; 9 pages; summarized: Plaintiffs bring suit against Princess arising out of their purchase and subsequent cancellation of a cruise aboard Regal Princess, a cruise line operated by Princess. Despite a clear and unambiguous forum-selection clause in the Passage Contract requiring arbitration of non-personal injury or death cases by Plaintiffs against Princess in Miami-Dade County, Florida. Plaintiffs filed their lawsuit in this Court. Plaintiffs assert causes of action for breach of contract, promissory estoppel, and unlawful denial of public accommodation. Because this action was filed in the wrong forum, the Court should grant Princess's motion to dismiss the case for improper forum. Contends that:

Maritime Law Governs This Matter.

The Forum Selection Clause At Issue Herein Requires Suit To Be Brought in the United States District Court for the Southern District of Florida

Forum Selection Clauses Are Valid and Enforceable Under the Applicable General Maritime Law.

The Passage Contract Containing the Forum-Selection Provision Is Not a Contract of Adhesion.

The Forum-Selection Clause Was Reasonably Communicated to Plaintiff, Who Had a Reasonable Opportunity to Review Same.

This Court Is Not the Proper Forum, and Dismissal Is Appropriate.

2. Declaration of Stephen Moglia; 45 pages; summarized; Stephen Moglia, declared: At all times material to this litigation, I am and have been the Director of Guest Claims in Defendant Princess Cruise Lines, Ltd.'s ("Princess") Risk Management Department. In this role, I routinely manage claims and litigation brought against Princess by guests, and I have knowledge of the terms and conditions of Princess' Passage Contract and its booking process. As part of my duties as Director of Guest Claims, I have access to Princess' business records, including guest booking history and related data, which is kept contemporaneously by persons with personal knowledge, in the regular course of Princess' business. Princess is incorporated in Bermuda and maintains its principal place of business

in Santa Clarita, California. It also maintains offices within the Southern District of Florida, where I am located and where Princess cruise ships regularly embark and disembark passengers. According to my review of their booking history, on January 2, 2026, Plaintiffs commenced a booking aboard Regal Princess, a vessel operated by Princess (the "Vessel"), departing from Galveston, Texas on February 15, 2026.

Attached Exhibit A - copy of a screenshot from Plaintiffs' Booking - Basic Information showing a booking "Open" date of January 2, 2026, and a unique Booking Number of DRCQ5T, which was assigned to Plaintiffs' booking.

Attached Exhibit B - a copy of Princess' "Document List" for Booking Number DRCQ5T. This list includes columns for the destination of the document ("Destination"), the type ("Typ") of document, and the status ("Stat") of the document. The "Document List" for Plaintiffs' booking evidence booking confirmations (identified by the initials "BC") were sent to "PETERVANBREGMANN@GMAIL.COM" on January 2, January 5, and January 13, 2026.

Attached Exhibit C - a correct exemplar of Princess' Booking Confirmation form in use at the time of Plaintiff's booking, which includes the following language: "IMPORTANT NOTICE: Upon booking the Cruise, each Passenger explicitly agrees to the terms of the Passage Contract www.princess.com/legal/passage_contract/index.jsp. Please read all section carefully as they affect the passenger's legal rights."

The Passage Contract has also been, at all relevant times, made available online

by Princess at: <https://www.princess.com/legal/passage-contract/pcl> to anyone with Internet access.

Attached Exhibit D - a copy of the Passage Contract that was applicable to Plaintiffs' 2026 Booking Number DRCQ5T. The first paragraph of the Passage Contract, written in all-capital, black lettering against a white background, draws attention to the forum selection provisions as follows:

IMPORTANT NOTICE TO GUESTS: PLEASE CAREFULLY READ THE

FOLLOWING PASSAGE CONTRACT TERMS THAT GOVERN ALL

DEALINGS BETWEEN YOU AND THE CARRIER (DEFINED BELOW),

AFFECT YOUR LEGAL RIGHTS, AND ARE BINDING ON YOU TO THE

FULL EXTENT PERMITTED BY LAW; PARTICULARLY SECTION 5

GOVERNING ELIGIBILITY REQUIREMENTS FOR SAILING, SECTION 14

GOVERNING THE PROVISION OF MEDICAL AND OTHER PERSONAL

SERVICES, SECTIONS 15 AND 16 LIMITING LIABILITY OF THE

CARRIER, THE VESSEL, AND OTHERS FOR YOUR DEATH, ILLNESS,

INJURY, OR DAMAGE CLAIMS RELATING TO BAGGAGE OR

PERSONAL PROPERTY, AND SECTION 17 LIMITING YOUR RIGHT TO

SUE, IDENTIFYING THE FORUM FOR SUIT, REQUIRING ARBITRATION

AND WAIVER OF JURY TRIAL FOR CERTAIN CLAIMS, AND WAIVING

YOUR RIGHT TO ARREST OR ATTACH CARRIER'S VESSELS.

Section 17 of the Passage Contract

It states, in pertinent part: All Other Claims; Agreement to Arbitrate: All claims other than for Emotional Harm, bodily injury, illness to or death of a Guest, whether based

on contract, tort, statutory, constitutional or other legal rights, including without limitation alleged violations of civil rights, discrimination, consumer or privacy laws, or for any losses, damages or expenses, relating to or in any way arising out of or connected with this Passage Contract or Guest's cruise, with the sole exception of claims brought and litigated in small claims Court, shall be referred to and resolved exclusively by binding arbitration pursuant to the United Nations Convention on the Recognition and Enforcement of

Foreign Arbitral Awards ... and the Federal Arbitration Act ... located in Miami-Dade County, Florida, U.S.A. to the exclusion of any other forum. ... You consent to jurisdiction and waive any objection that may be available to any such arbitration proceeding in Miami-Dade County, Florida, U.S.A. ... The term "Carrier" is defined in the Passage Contract as "Princess Cruise Lines, Ltd., the operator of the vessel." (Exhibit D, p. 1.) The terms "You," "Your" and "Guest" in the Passage Contract mean "the person(s) booking or purchasing the Cruise or named on the booking confirmation/statement and persons in their care, including any minor, and their heirs, relatives, successors in interest, traveling companions, and personal representatives." (Exhibit D, p. 2.)

3. Submitted a [Proposed] Order

Plaintiffs' Opposition

Filed 3/20/26; 6 pages; summarized: Defendant seeks the most extreme relief -dismissal - based on the thinnest showing: that booking confirmation emails were allegedly "sent" and contained a hyperlink to a web-hosted "Passage Contract," and

that this somehow equals an "explicit agreement" by both Plaintiffs to arbitrate in Miami-Dade County, Florida.

That is not mutual assent. It is not proof of clickwrap acceptance, checkbox assent, signature, or an audit log. It is, at best, a hyperlink and a conclusory leap. Defendant's motion is internally unreliable on its face. Defendant's Notice of Motion states the Passage Contract "requires that Plaintiffs' personal injury claims be arbitrated, if at all, in Miami-Dade County, Florida." Plaintiffs do not assert personal injury claims. Defendant's memorandum instead argues Section 17 requires arbitration of non-claims such as. breach of and personal-injury contract, promissory estoppel, public accommodation claims. This is not a harmless typo where Defendant requests dismissal and tries to force Plaintiffs into a distant forum. It exposes what is happening: Defendant is attempting to use procedural momentum to avoid merits review. The motion should be denied. Alternatively, if the Court considers arbitration enforcement, dismissal is improper. The Court should, at most, stay the action and require Defendant to make a proper evidentiary showing of assent by each Plaintiff.

Defendant moves under Code of Civil Procedure sections 410.30 and 418.10(a)(2) and

seeks dismissal for improper forum. Defendant's memorandum argues that Section 17 of the Passage Contract requires arbitration in Miami-Dade County, Florida for "all other claims," including contract and statutory claims.

Defendant submits a declaration from Stephen Moglia asserting booking records show confirmations were "SENT" to Peter Van Bregmann's email address on multiple dates. Moglia also attaches an exemplar "Booking Confirmation" containing an "IMPORTANT NOTICE" and a hyperlink reference.

Moglia does not provide (1) any clickwrap acceptance record, (2) any checkbox assent

record, (3) any signed agreement, (4) any audit trail showing what was displayed at

checkout, or (5) any evidence that John Bacon assented at all. Instead, Defendant asks this Court to infer "explicit agreement" from a hyperlink and "sent" status. That is insufficient.

Arbitration and forum selection are matters of contract and enforceability. The moving party bears the burden to prove the existence of an agreement formed by notice and assent, and the applicability of the clause to the dispute.

Defendant's Notice of Motion claims the Passage Contract requires Plaintiffs' "personal injury claims" be arbitrated in Miami-Dade County, Florida. Plaintiffs do not bring personal injury claims. Defendant's memorandum then argues the opposite: that Section 17 applies to non-personal-injury claims like breach of contract, promissory estoppel, and public accommodation claims. Defendant cannot seek dismissal based on an internally contradictory premise and expect the Court to assume away the gap.

Defendant's evidentiary showing collapses into two propositions: (1) confirmations were

"SENT," and (2) the exemplar confirmation contains hyperlink language. Neither proves assent. "Sent" does not establish received, opened, read, or agreed. A hyperlink is not a signature. A hyperlink is not clickwrap assent. Defendant provides no logs, no "I agree" screen capture, and no proof that agreement was required to complete booking. If Defendant wishes to force Plaintiffs into arbitration and out of Court, Defendant must prove actual agreement, not argue that agreement should be presumed.

Defendant's Showing Is Especially Deficient as to John Bacon. Defendant seeks relief against two Plaintiffs but relies on confirmations "sent" to Peter Van Bregmann's email. Defendant does not produce any acceptance mechanism or assent record for John Bacon. Assent must be proven Plaintiff by-Plaintiff.

Dismissal Is Improper Even If the Court Were to Consider Arbitration Enforcement. Even if the Court were inclined to compel arbitration (which Defendant has not supported with competent assent evidence), dismissal is improper. At most, the Court should stay the action pending arbitration. A stay preserves Court supervision and prevents procedural gamesmanship.

The Miami-Dade Only Venue Restriction Should Not Be Used as a Litigation Weapon.

Defendant seeks to litigate in California through California counsel while insisting Plaintiffs must be sent to County, Florida "to the exclusion of any other forum." This asymmetry highlights the coercive nature of the forum restriction as applied. At minimum, it cannot justify dismissal on this record.

Defendant has not met its burden to establish mutual assent to arbitration in Miami-Dade

County, Florida. Defendant's Motion to Dismiss should be DENIED. In the alternative, if the Court considers arbitration enforcement, Plaintiffs request the Court deny dismissal, stay this action, and require Defendant to produce competent evidence of assent by each Plaintiff before any arbitration is compelled.

Supported by the Declaration of Bacon; read and considered.

Supported by the declaration of Bregmann; read and considered.

Princess' Reply

Filed by Princess on 4/28/26; 7 pages; summarized: Plaintiffs' Failure to Cite Legal Authority in Support of Their Arguments Operates as a Waiver of Said Arguments.

California Rule of Court 3.113(b) provides: "The memorandum must contain a statement

of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." A Court may decline to consider an argument that does not comply with rule 3.1113 of the California Rules of Court. [Nationwide Ins. Co. of Amer. v. Tipton, 91 Cal.App.5 1355, 1365 (2023)], rests on a policy-based allocation of resources, preventing the trial Court from being cast as a tacit advocate . . . by freeing it from any obligation to comb . . . the law for . . . legal support that a party has failed to identify or provide.] Plaintiffs' Opposition does not comply with Rule 3.113(b). Plaintiffs cite to only three statutes in their Opposition and no case law. The three statutes to which Plaintiffs cite are (1) the statutes providing authority for Princess' Motion to Dismiss (Code of Civ. Pro. §§ 410.30 and 418.10) and (2) a statute defining the manner in which contractual arbitration proceedings are expected to proceed under California state law (Code of Civ. Pro. § 1282.2). The former two of these statutes (Code of Civ. Pro §§ 410.30 and 418.10) are only relevant in the sense that they confirm Princess' legal authority to proceed with its Motion to Dismiss (and, in fact, both were cited by Princess in its original moving papers – see p. 3, line 28 of Princess' Memorandum in support of the Motion to Dismiss). The last of these statutes (Code of Civ. Pro. 1282.2) is completely irrelevant to the case as it currently exists because (1) Plaintiffs' case is not currently in arbitration, and (2) Plaintiffs' case is not subject to California state law because it arises out of a maritime contract. *Kermarec v. Compagnie* (1959) 358 U.S. 625, 628 [79 S. Ct. 406]; *Wallis ex rel. Wallis v. Princess Cruises, Inc.* (9th Cir. 2002) 306 F.3d 827, 834 ("A cruise line passage contract is a maritime contract governed by general federal maritime law.")

Plaintiffs Failed to Meet Their Burden to Show that the Forum-Selection Clause in Princess' Passage Contract is Unenforceable. Plaintiffs Misstate the Relevant Burden of Proof. Should this Court consider Plaintiffs' unsupported arguments in Opposition to the Motion to Dismiss, Plaintiffs' misstatement of the applicable legal standard must first be

acknowledged. As set forth in Princess' moving papers, it is Plaintiffs' burden to prove the unenforceability of the forum-selection clause in their otherwise legally binding Passage Contract with Princess. The Bremen v. Zapata Off-Shore Co. (1972) 407 U.S. 1, 15; Schlessinger v. Holland America, N.V. (2004) 120 Cal.App.4th 552, 558; Lu v. Dryclean-U.S.A. of California, Inc. (1992) 11 Cal.App.4th 1490, 1493: "Given the importance of forum selection clauses, both the United States Supreme Court and the California Supreme Court have placed a heavy burden on a Plaintiff seeking to defeat such a clause, requiring it to demonstrate that enforcement of the clause would be unreasonable under the circumstances of the case."

Plaintiffs Concede the Existence of a Binding Contract with Princess. While doing their best to frame this dispute as one involving "lack of assent," Plaintiffs have already conceded the existence of an underlying, binding Passage Contract with Princess. In their Complaint: the opening paragraph of the Complaint alleges "cancellation of a fully-paid,

confirmed passenger booking after accepting Plaintiffs' money" (Complaint, p. 1, lines 21 and 22), the first sub-heading under the Complaint's "Factual Allegations" heading reads "Princess Accepted Payment and Formed a Binding Contract" (Complaint, p. 3, lines 8 and 9), and Plaintiffs' first cause of action is entitled "Breach of Contract" (Complaint, p. 6, lines 5 through 8).

Plaintiffs' Attempt to Prove "Lack of Assent" Is Legally Unsupported and Factually Inapposite. Plaintiffs purport to rely on the "absence" of a "mandatory clickwrap acceptance, checkbox, 'I Agree' screen, or signature process requiring consent to Miami-Dade arbitration" as the sole grounds on which they argue that they did not "assent" to, and therefore can now ignore, the Passage Contract's forum-selection clause. California Rule of Court 3.113(b)'s requirement that arguments made in opposing briefs must be supported by relevant law is rendered especially pertinent by this argument, given Plaintiffs' contention that the hand-picked, "absent," "consent processes" are "mandatory:" mandatory to whom is a question left entirely unanswered.

Tellingly, Plaintiffs do not direct the Court's attention to any laws requiring the use of

"clickwrap acceptance," "checkbox[es]," or "I Agree screens" in maritime cruise line Passage Contracts. In the absence of any cited law, Plaintiffs' argument in this regard should be deemed waived.

Plaintiffs' reliance on the alleged "lack" of cherry-picked "consent processes" ignores the multiple other consent processes with which Plaintiffs engaged when they confirmed

their bookings. These processes are detailed at paragraphs 4, 5, and 7 of the Declaration of

Stephen Moglia, Princess' Director of Guest Claims, filed in support of Princess' moving papers. In their Opposition, Plaintiffs do not dispute that: (a) Princess sent Booking Confirmation forms to the correct email address for Plaintiff Peter Van Bregmann on three separate occasions; (b) the Booking Confirmation form included the words "IMPORTANT NOTICE" notifying Plaintiffs of their "explicit" agreement to the terms of the Passage Contract they had purchased; (c) the IMPORTANT NOTICE heading was immediately followed by a hyperlink to the Passage Contract itself; and (d) the Passage Contract explicitly states the importance of reading it in full, and specifically

draws attention to Section 17, which identifies the forum for suit, requiring arbitration and waiver of jury trials for certain claims", and (e) Section 17 of the Passage Contract explicitly states that "all claims other than for Emotional Harm, bodily injury, illness to or death of a Guest . . . shall be referred to and resolved exclusively by binding arbitration . . . in Miami-Dade County". Plaintiffs do not explain how the above "consent processes" were insufficient to communicate to them the existence of the forum-selection clause at issue in this Motion to Dismiss, which, as set forth in Princess' Memorandum in support of the Motion to Dismiss, is the relevant legal standard Plaintiffs were expected to meet in their Opposition.

Princess Reasonably Communicated the Forum-Selection Clause to Plaintiffs. Princess set forth in its Memorandum in support of the Motion to Dismiss the Ninth Circuit's two-pronged test of "reasonable communicativeness," used to determine

when a passenger is contractually bound by the “fine print of a passenger ticket.” *Schlessinger v. Holland America, N.V.*, supra, 120 Cal.App.4th at p. 557; see also, *Walker v. Carnival Cruise*

Lines (N.D. Cal. 1999) 63 F.Supp.2d 1083, 1087, on reconsideration, 107 F. Supp. 2d 1135

(N.D. Cal. 2000) (“In the Ninth Circuit, as elsewhere, the adequacy of notice given by boilerplate language in a passenger contract is a question of law determined by assessing whether a particular provision was ‘reasonably communicated’ to the passenger.”) The two prongs at issue are: (a) the physical characteristics of the ticket itself (font size, conspicuousness, clarity of notice, ease of perceiving the ticket provisions in question), and (b) an evaluation of “the circumstances surrounding the passenger’s purchase and subsequent retention of the ticket/contract,” including “extrinsic factors indicating the passenger’s ability to become meaningfully informed of the provisions. *Wallis v. Princess Cruises, Inc.*, supra, 306 F.3d at ps. 835 – 836.

Plaintiffs’ Opposition does not address either prong, either to explain how Princess’ Passage Contract failed to satisfy them or to contend that a different test should apply. As a result, the forum-selection clause in Princess Passage Contract should be deemed to have been reasonably communicated to Plaintiffs, and the Motion to Dismiss should be granted.

At best, Plaintiff’s arguments circle around the second prong of the reasonable communicativeness test, involving evaluation of “the circumstances surrounding the passenger’s purchase and subsequent retention of the ticket/contract,” including “extrinsic factors indicating the passenger’s ability to become meaningfully informed of the provisions.” *Wallis v. Princess Cruises, Inc.*, supra, 306 F.3d at p. 836.

Plaintiffs contend that alternative means of communication (mandatory clickwrap

acceptance, checkboxes, I Agree’ screens, or signatures) should have been used instead of those employed by Princess (Booking Confirmations sent three times, language in the Booking Confirmation explaining the importance of the documents at a hyperlink, and the language of the Passage Contract itself which was at the other end of the hyperlink). But Plaintiffs’ contention in this regard is inadequate: Plaintiffs do not describe the alleged “deficiencies” of the Princess “consent process,” or offer evidence that their preferred “consent processes” were objectively better at communicating the necessary information. Courts have made clear that passengers do not have to read the terms of a Passage Contract to be bound by them. “The issue is simply whether passengers had an opportunity to read their tickets.” *Walker v. Carnival Cruise Lines*, supra, 63 F.Supp.2d at p. 1089.

Likewise, Courts routinely enforce ticket limitations in Passage Contracts that are prefaced with the language “IMPORTANT NOTICE” and remind the reader that their legal rights are affected, even where the limitation provision is “buried” in a contract’s fine print. *Wallis v. Princess Cruises, Inc.*, supra, 306 F.3d at p. 836. As pointed out in Princess’

Memorandum in support of the Motion to Dismiss, the manner in which its Passage Contract alerts its passengers to the forum-selection clause is completely consistent with the Ninth Circuits’ standards, as described in those cases where they have been considered.

Plaintiffs’ Opposition also asserts that no “acceptance mechanism or assent record for

John Bacon” was offered in evidence with Princess’ moving papers, and therefore Princess’

papers are “especially deficient” with respect to Plaintiff John Bacon. This assertion ignores the explicit language of the Passage Contract, Section 17, cited in Princess’ moving papers at page 2, which directs the application of the forum-selection clause as follows: “You consent to jurisdiction and waive any objection that may be available to any such arbitration proceeding in Miami-Dade County.” As Princess’ moving papers point out, the Passage Contract defines “You” to

mean "the person(s) booking or purchasing the Cruise or named on the booking confirmation/statement and persons in their care, including any . . . traveling companions." (Moglia Decl., ¶ 7, Exh. D at p. 3.) Under this definition, the "You" used in Section 17 of the Passage Contract applies to both Plaintiff Peter Van Bregmann and his traveling companion, John Bacon, and both are therefore equally bound by the forum-selection clause.

Plaintiffs' Sur-Reply

Filed 4/29/26. 12 pages. Such pleadings are not allowed in Civil Law and Motion practice; for the obvious reasons; a sur-reply is typically followed by a sur-response which is then followed by a sur-sur-reply and so on. Additionally, the document is single-spaced, which also violates the rules. If you are going to represent yourselves, you need to learn the rules. However, the Court has elected to ignore the rules, too, and the Court has read and considered the Sur-Reply. Summarized. Plaintiffs seek to address new theories and arguments raised for the first time in Defendant's Reply, including (1) waiver and (2) a "traveling companion" theory as to John Bacon, neither of which was presented in Defendant's moving papers and neither of which is supported by proof of enforceable notice or assent. Plaintiffs object to this new matter raised for the first time in Reply and request that it be disregarded. Alternatively, if the Court is inclined to consider such new matter, Plaintiffs respectfully request a brief continuance to permit a full and fair opportunity to respond.

Defendant seeks dismissal based on a forum-selection/arbitration clause but fails to

establish that Plaintiffs received meaningful notice of the alleged contractual terms; and

that Plaintiffs assented to those terms. Defendant bears the burden of proving an enforceable agreement to arbitrate. That burden requires evidence of notice, opportunity, and assent-not assumptions, internal notations, or post-hoc explanations. Instead, Defendant relies on assertions that booking emails containing hyperlinks were sent.

The existence of online contractual terms; and a retroactively asserted date: December 7, 2021. Defendant does not contend that any "Do Not Sail" designation was ever communicated to Plaintiffs in writing at any time. Defendant's Reply introduces new arguments not raised in its motion, including waiver and expanded reliance on "reasonable communicativeness," as well as a "traveling companion" theory. Courts favor decisions on the merits rather than procedural surprise. A limited sur-reply is appropriate. Defendant claims a "Do Not Sail" designation was imposed on "December 7, 2021, while Plaintiffs were on a cruise." The actual timeline shows no such restriction existed:

November 5, 2021, A brief communication occurred with an individual later identified as Melinda. Upon recognizing the contact was not through an appropriate business channel, the communication was immediately disengaged.

The individual attempted to continue the exchange and referenced assisting a family

dealing with a death and complications involving a young child traveler. No further substantive interaction occurred. Contemporaneous messages reflect a polite and non-confrontational tone, including statements such as "thank you" "you're a sweetheart" and similar Courteous expressions. There is no evidence of threatening, abusive, or escalatory conduct.

January 6, 2022. Princess contacted John Bacon regarding the November 5, 2021, communication with Melinda and advised that the consequence for that contact was the loss of the ability to make group bookings with Princess. Critically, Princess did not communicate any "Do Not Sail" designation, did not advise that John Bacon was barred from sailing, and did not state that any system-wide restriction had been imposed.

This distinction is significant because it demonstrates that Princess was aware of the

10 November 5, 2021, communication, evaluated it at that time, and imposed a specific and

limited consequence without imposing or disclosing any "Do Not Sail" restriction.

John Bacon tried contacting representatives regarding the January 6, 2022, group booking restriction that was being communicated in response to his attempt to resolve the situation for the grieving family.

A cease-and-desist letter was issued. Still, no "Do Not Sail" designation was communicated.

2022-2025. There was: no notice; no enforcement; no account limitation; no written communication of ineligibility; no restriction visible to Plaintiffs.

January 6, 2026. At approximately 2:29 p.m., Defendant informed Plaintiffs for the first time that John Bacon was on a "Do Not Sail" list. During that call, Defendant asserted:

The designation was imposed on "December 7, 2021" while on a cruise.

January 6, 2026. Later that same day, a supervisor stated: "This was due a situation back in December of 2021." "We do not advise the situation." "You will not be permitted on board our ships." "We are canceling this booking."

There was no notice in 2021; no enforcement; no contemporaneous action; no written notice; no account restriction communicated to Plaintiffs; no onboard incident documented; no contemporaneous report produced.

If a restriction existed, it would have been documented, communicated, and enforced. It

was not. The absence of notice, enforcement, or contemporaneous action is legally significant. Defendant cannot rely on a retroactively asserted date to create a maritime nexus where no contemporaneous maritime event has been shown. This absence of contemporaneous action is inconsistent with the existence of any actual restriction at that time.

The asserted December 7, 2021, date appears only in later communications and litigation.

Defendant has produced no contemporaneous documentation supporting that date. The timeline is internally inconsistent: alleged underlying contact: November 5, 2021, asserted ban date: December 7, 2021 first notice to Plaintiffs: January 6, 2026 first written reason from counsel:

February 10, 2026. On February 10, 2026, Defendant's counsel first provided a written explanation, asserting that John Bacon was placed on the "Do Not Sail" list after obtaining publicly available information of a Princess executive and making contact outside

Ordinary business channels in connection with efforts to assist a grieving family, following prior attempts to escalate the matter through standard channels that did not result in any

resolution or response.

That written explanation does not establish that any 'Do Not Sail!' designation was imposed on December 7, 2021. It also does not identify any onboard incident, any contemporaneous report, any contemporaneous notice, or any action taken at or near

December 7, 2021.

If Defendant possesses a contemporaneous record establishing a "Do Not Sail"

designation on December 7, 2021, Defendant can produce it. It has not.

Defendant's financial conduct contradicts the assertion that any restriction existed beginning in December 2021. If such a restriction had been imposed, Defendant would not have retained John Bacon's Future Cruise Credits without disclosure of ineligibility.

Instead, Defendant: retained the Future Cruise Credits; provided no written notice of ineligibility; imposed no visible restriction on the account; allowed the credits to expire unused.

A genuine restriction would have required written notice of ineligibility, refund or reissuance of unusable credits, clear account-level restriction, prevention of reliance on future travel eligibility, timely disclosure before retaining travel-related value.

None of these actions occurred. These facts demonstrate that the alleged restriction was not contemporaneous, not consistently enforced, and not communicated. This conduct raises substantial California fairness and consumer-protection concerns because Defendant retained value from California consumers while failing to disclose a restriction allegedly rendering that value unusable.

Publicly available information further confirms that "Do Not Sail" designations within

Carnival-affiliated cruise lines, including Defendant, are discretionary in nature and not

applied pursuant to any consistent or transparent standard. In a documented instance, a same-sex couple associated with Sail Away Magazine was banned across Carnival-affiliated brands following a critical YouTube review of Carnival Corporation. Although many cruise critics publicly criticize Carnival Corporation and affiliated cruise lines on YouTube and other public platforms, this restriction was imposed on those individuals and later reversed once the ban became public.

Once public scrutiny occurred, Carnival Corporation reversed the restriction and lifted

the ban with immediate effect. This demonstrates that: such restrictions may be imposed in response to criticism; such restrictions may be selectively applied; such restrictions are subject to discretionary reversal; such restrictions are not necessarily fixed or permanent;

such restrictions lack transparent procedural safeguards.

This context is not offered to prove motive, but to show that the type of restriction Defendant claims to have imposed here is discretionary, reversible, and not necessarily

ties to a fixed safety determination.

That discretionary nature is consistent with Defendant's conduct in this case, where:

no contemporaneous restriction was enforced; no written notice was provided; no explanation was given when Plaintiffs first asked; the designation was asserted only years later.

The December 7, 2021 date appears to be used to link the alleged conduct to a cruise and

invokes maritime law, despite the absence of any contemporaneous onboard incident or

documented maritime events. However, Defendant's own asserted factual basis concerns alleged contact with a third party outside normal business channels on or about November 5, 2021.

Defendant has produced no evidence of any onboard incident; any incident report from December 7, 2021; any contemporaneous onboard action; any maritime safety issue; any voyage-related event connected to the alleged restriction; any notice provided during or immediately after the cruise.

Defendant cannot retroactively convert a land-based or off-ship communication into a

maritime incident by assigning a later cruise-related date unsupported by evidence.

Without the unsupported December 7, 2021, date, there is no legitimate maritime nexus

supporting arbitration.

Defendant relies on assertions that booking emails were sent and that terms were

available via hyperlink. Defendant has not shown receipt; review; access; agreement;

clickwrap acceptance; signature; audit trail; individualized assent as to John Bacon.

Mere transmission does not establish receipt. Receipt does not establish assent. Defendant also does not contend that any "Do Not Sail" designation was communicated in writing through those emails.

LEGAL STANDARD UNDER MARITIME LAW

Under controlling authority: *The Bremen v. Zapata Off-Shore Co.* (1972) 407 U.S. 1;

Carnival Cruise Lines, Inc. v. Shute (1991) 499 U.S. 585; *Wallis v. Princess Cruises, Inc.* (9th Cir. 2002) 306 F.3d 827; *Deiro v. American Airlines, Inc.* (9th Cir. 1987) 816 F.2d 1360; *Walker v. Carnival Cruise Lines* (9th Cir. 1997) 107 F.3d 857.

Defendant must show reasonable communication, meaningful opportunity to review, and actual assent. Defendant has not satisfied these requirements.

DISMISSAL IS IMPROPER

Even if arbitration were considered, dismissal is not required. A stay would be the appropriate remedy. Dismissal would prejudice Plaintiffs and reward Defendant's reliance on an unsupported timeline, lack of notice, and post-hoc explanation.

CALIFORNIA'S INTEREST IN ADJUDICATING THIS DISPUTE

California has a strong interest in ensuring that its residents are not deprived of access to

its Courts through enforcement of contractual provisions that were not reasonably

communicated or knowingly accepted. This dispute arises from Defendant's business conduct affecting California residents, including acceptance of payment; confirmation of a booking; retention of travel-related value; lack of notice of ineligibility; later cancellation based on a restriction never communicated in writing; retention and expiration of Future Cruise Credits despite alleged ineligibility. Under these circumstances, California has a substantial interest in adjudicating this matter within its Courts, particularly where Defendant has failed to establish meaningful notice, actual assent, or a reliable contemporaneous basis for the alleged restriction.

EQUITY AND FAIRNESS

Defendant accepted payment, confirmed the booking, removed Plaintiffs from the

reservation, and invoked a restriction years later without prior written notice. The record reflects no contemporaneous communication, no enforcement at the time of the alleged conduct, and no opportunity for Plaintiffs to understand or respond to any alleged restriction. Under these circumstances, enforcement of an arbitration or forum-selection provision would be fundamentally unfair. Plaintiffs respectfully request that the Court: Disregard new matter raised in Defendant's Reply; Deny Defendant's Motion to Dismiss; Permit this action to proceed in Santa Barbara; and alternatively, order a stay rather than dismissal.

Plaintiffs' Summary of Evidentiary Deficiencies

A. No Contemporaneous Evidence. Defendant has produced: no incident report; no internal determination record; no documentation from December 2021; no onboard report; no contemporaneous notice.

B. No Notice. Defendant has produced: no email communicating a "Do Not Sail" designation; no letter communicating a "Do Not Sail" designation; no account message communicating a "Do Not Sail" designation; no acknowledgment by Plaintiffs.

C. No Assent. Defendant has produced: no signed agreement; no clickwrap acceptance; no checkbox assent; no audit trail; no individualized assent as to John Bacon.

D. Inconsistent Conduct. Defendant's conduct is inconsistent with an active restriction because: Future Cruise Credits were retained; credits were allowed to expire; no account restriction was disclosed; no ineligibility notice was provided; no contemporaneous enforcement occurred.

E. Timeline Defect. The timeline is internally inconsistent: alleged contact: November 5, 2021; asserted ban: December 7, 2021; first notice: January 6, 2026; first written reason: February 10, 2026.

F. Legal Consequence. Without proof of notice, assent, and a reliable contemporaneous basis for the asserted restriction, the arbitration/forum-selection clause should not be enforced.

The Court's Conclusions

Plaintiffs' unpermitted and allegedly short Sur-Reply brief [12-page single spaced] has been read and considered irrespective of the Rules that it is not permitted.

Plaintiffs cite to no relevant statutory authority, and to no case law whatsoever, in support of the arguments made in their Opposition, they have failed to comply with Rule 3.113(b). Given Plaintiffs' failure to comply with Rule 3.113(b), the arguments they attempt to raise in their Opposition should be deemed waived by this Court, and Princess' Motion to Dismiss should be granted as if it were unopposed.

This is enough to decide the case. But the Court has elected to read and consider everything said. Therefore, even if this were not enough to decide the case the Court has considered other arguments.

Plaintiffs have incorrectly relied on a typographical error in the Notice of Motion to Dismiss. Plaintiffs argue that the Motion to Dismiss is internally unreliable and an attempt to use procedural momentum to avoid merits review. Specifically, they note that the Notice of Motion to Dismiss says that the Passage Contract requires that Plaintiffs' personal injury claims be arbitrated in Miami-Dade County. However, read in connection with the balance of Princess' moving papers, it is obvious that the italicized words contain a typographical error: they should read "non-personal injury claims." The error is not repeated anywhere else in the moving papers, and the Motion to Dismiss quotes the exact language at issue where it is abundantly clear that the forum-selection clause at issue applies to non-personal injury claims like Plaintiffs' complaint herein. Plaintiffs were not, in fact, misled by the typographical error.

Plaintiffs claim that the Court should reject the motion because there was no contemporaneous evidence, no notice, no assent, inconsistent conduct, timeline defect and legal consequence is without merit. The moving papers were clearly adequate on each and all those meritless claims.

Defendants claim that Plaintiffs seek to address new theories and arguments raised for the first time in Defendant's Reply, including (1) waiver and (2) a "traveling companion" theory as to John Bacon, neither of which was presented in Defendant's moving papers and neither of which is supported by proof of enforceable notice or assent and Plaintiffs object to this new matter raised for the first time in Reply and request that it be disregarded, or alternatively, if the Court is inclined to consider such new matter, Plaintiffs request a brief continuance to permit a full and fair opportunity to respond. That objection is without merit. There are no new theories or arguments raised for the first time. Plaintiffs merely responded to the arguments raised by the Defendants in their Response. The Court will consider it and will not grant continuance. Additionally, Plaintiffs have already had a chance to respond and indeed attempted to do so in their Sur-Reply, which the Court has read and considered.

Plaintiffs' Opposition does not dispute the central fact raised by the Motion to Dismiss: Princess' Passage Contract contains a forum-selection clause requiring non-personal injury claims, including breach of contract and other consumer-based claims, to be arbitrated in Miami-Dade County, Florida. Plaintiffs nevertheless filed their Complaint in the Superior Court of California, County of Santa Barbara. To defeat the instant Motion to Dismiss, it is Plaintiffs' burden to show, by citation to both relevant law and admissible evidence, that the forum-selection clause is unenforceable. Plaintiffs' Opposition does not do so, relying instead on the conclusory and legally unsupported assertion that neither Plaintiff "assented" to arbitration in Miami-Dade County. Princess' Motion to Dismiss must therefore be granted.

Additionally, Princess set forth in its Memorandum in support of the Motion to Dismiss the Ninth Circuit's two-pronged test of "reasonable communicativeness," used to determine when a passenger is contractually bound by the "fine print of a passenger ticket." *Schlessinger v. Holland America, N.V.* (2004) 120 Cal.App.4th 552, at p. 557. The two prongs at issue are: (a) the physical characteristics of the ticket itself (font size, conspicuousness, clarity of notice, ease of perceiving the ticket provisions in question), and (b) an evaluation of "the circumstances surrounding the passenger's purchase and subsequent retention of the ticket/contract," including "extrinsic factors indicating the passenger's ability to become meaningfully informed of the provisions. *Wallis ex rel. Wallis v. Princess Cruises, Inc.* (9th Cir. 2002) 306 F.3d 827 at ps. 835 – 836. Plaintiffs' Opposition does not address either prong, either to explain how Princess' Passage Contract failed to satisfy them or to contend that a different test should apply. As a result, the forum-selection clause in Princess Passage Contract should be deemed to have been reasonably communicated to Plaintiffs, and the Motion to Dismiss should be granted.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US